

# PCL312597 Citibank, N.A. vs. Lozano, Maria

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-28

Motion: Plaintiff's Motion to Set Aside Default Judgment

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Re: Citibank, N.A. vs. Lozano, Maria

Case No.: PCL312597

Date: July 28, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Motion to Set Aside Default Judgment

Tentative Ruling: To grant the motion and dismiss the case without prejudice.

## Facts and Analysis

In this matter, Plaintiff obtained default judgment on June 11, 2025.

However, Defendant in this action had passed away in or about February 2025 prior to the entry of the judgment.

Plaintiff therefore requests the default and default judgment be set aside and that this case be dismissed with prejudice.

The Court, therefore, grants the motion, vacates default and default judgment and dismisses this matter without prejudice as requested.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.